

Mohd. Chand Pisar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 July 2013 · Writ-C No. 36924 of 2013 · **Writ disposed; relegated to clause 6.5 complaint.**

HEADNOTE

Writ seeking quashing of an electricity bill of Rs. 47,671 disposed of without examining the bill on merits. The consumer was left to file a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Mohd. Chand Pisar filed Writ-C No. 36924 of 2013 seeking quashing of an electricity bill dated 15 May 2013 for Rs. 47,671 issued by respondent no. 3. The petition was listed as fresh on 11, 22 and 24 July 2013 and adjourned as prayed. On 29 July 2013 the Division Bench heard counsel for both sides. Respondents submitted that the petitioner's remedy was a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A writ petition seeking quashing of an electricity bill will be disposed of without a merits decision where the consumer has an appropriate complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005; the consumer may avail that complaint. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE ELECTRICITY BILL DATED 15.5.2013 FOR RS. 47,671

Left to complaint under clause 6.5; writ not decided on merits. ¶ 4